

1 ENGROSSED HOUSE
2 BILL NO. 3242

By: Hasenbeck, Olsen,
Crosswhite Hader, Staires,
and Wolfley of the House

3
4 and

5 Seifried of the Senate
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7

8 An Act relating to privacy; amending Section 1,
9 Chapter 323, O.S.L. 2022, as amended by Section 1,
10 Chapter 283, O.S.L. 2023 (70 O.S. Supp. 2025, Section
11 1-125), which relates to restrooms in public schools;
12 defining terms; adding sleeping quarters to certain
13 exclusive usage; prohibiting compelling of unrelated
14 students of opposite sex to share sleeping quarters
15 during a public school event; providing exception;
16 requiring private changing areas; requiring certain
17 entities to provide exclusive changing and sleeping
18 areas for persons of designated sex; requiring
19 exclusivity; providing exceptions; prohibiting
20 compelling of unrelated students of opposite sex to
21 share sleeping quarters during a higher education
22 event; requiring private changing areas in institute
23 of higher education; requiring option for housing
24 provided by an institute of higher education to be
exclusively with the same sex; clarifying certain
situations and facilities are allowed; providing
private cause of action; providing filing time
limitations; providing for codification; and
providing an effective date.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 1. AMENDATORY Section 1, Chapter 323, O.S.L.
23 2022, as amended by Section 1, Chapter 283, O.S.L. 2023 (70 O.S.
24 Supp. 2025, Section 1-125), is amended to read as follows:

1 Section 1-125. A. As used in this section:

2 1. "Sex" ~~means the physical condition of being male or female~~
3 ~~based on genetics and physiology, as identified on the individual's~~
4 ~~original birth certificate~~ has the same meaning as provided in
5 paragraph 8 of Section 16 of Title 25 of the Oklahoma Statutes;

6 2. "Multiple occupancy restroom or changing area" means an area
7 in a public school or public charter school building designed or
8 designated to be used by more than one individual at a time, where
9 individuals may be in various stages of undress in the presence of
10 other individuals. The term may include but is not limited to a
11 school restroom, locker room, changing room, or shower room;

12 3. "Coach" means a person employed by a public school district
13 or public charter school who is involved in the teaching or training
14 of students participating in a school-sponsored athletic activity;
15 ~~and~~

16 4. "School-sponsored athletic activity" means a sporting event
17 that is supported and affiliated with the school such as practices,
18 games, matches, and tournaments; and

19 5. "Sleeping quarters" means a room containing a bed and in
20 which more than one individual is housed overnight.

21 B. To ensure privacy and safety, each public school and public
22 charter school that serves students in prekindergarten through
23 twelfth grades in this state shall require every multiple occupancy
24

1 restroom ~~or~~, changing area, and sleeping quarters designated as
2 follows:

3 1. For the exclusive use of the male sex; or

4 2. For the exclusive use of the female sex.

5 C. Each public school or public charter school in this state
6 shall provide a reasonable accommodation to any individual who does
7 not wish to comply with the provisions of subsection B of this
8 section. A reasonable accommodation shall be access to a single-
9 occupancy restroom or changing room.

10 D. During any activity or event authorized by a public school
11 or public charter school where students share sleeping quarters, no
12 student shall be required to share sleeping quarters with a member
13 of the opposite sex, unless such person is a member of the same
14 family, such as a parent, guardian, sibling, or grandparent.

15 E. In any other facility or setting in a public school or
16 public charter school where a person may be in a state of undress in
17 the presence of others, school personnel shall provide separate,
18 private areas designated for use by persons based on their sex.
19 Except as provided in subsection F of this section, no person shall
20 enter such private areas unless he or she is a member of the
21 designated sex.

22 F. The provisions of this section shall not apply to
23 individuals entering a multiple occupancy restroom or changing area
24

1 designated for use by the opposite sex when entering in any of the
2 following circumstances:

- 3 1. For custodial, maintenance, or inspection purposes;
- 4 2. To render emergency medical assistance; or
- 5 3. If a suitable meeting room or area is not available, a coach
6 may enter a locker room before, during, or after a school-sponsored
7 athletic activity, provided:
 - 8 a. all students present are fully clothed,
 - 9 b. the coach shall be accompanied by at least one
10 additional adult at all times, and
 - 11 c. if the coach is the opposite sex of the students
12 present, the coach shall be accompanied by at least
13 one adult of the same sex as the students present.

14 The adult shall not be a current high school student.

15 ~~F.~~ G. 1. Each school district board of education and public
16 charter school governing board shall adopt a policy to provide
17 disciplinary action for individuals who refuse to comply with the
18 provisions of this section.

19 2. No school district board of education or charter school
20 governing board shall adopt a policy contrary to the provisions of
21 this section.

22 ~~F.~~ H. Upon a finding of noncompliance with the provisions of
23 subsections ~~B, C, and D~~ through F of this section by the State Board
24 of Education, the noncompliant school district or public charter

1 school shall receive a five percent (5%) decrease in state funding
2 for the school district or public charter school for the fiscal year
3 following the year of noncompliance.

4 ~~G.~~ I. A parent or legal guardian of a student enrolled in and
5 physically attending a public school district or public charter
6 school shall have a cause of action against the public school
7 district or public charter school for noncompliance with the
8 provisions of subsections B, ~~C,~~ and ~~D~~ through F of this section.

9 ~~H.~~ J. The State Board of Education shall promulgate rules to
10 implement the provisions of this section.

11 SECTION 2. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 401 of Title 25, unless there is
13 created a duplication in numbering, reads as follows:

14 A. For purposes of this section:

15 1. "Changing room" means a room or area in which a person may
16 be in a state of undress in the presence of others, including a
17 locker room or shower room;

18 2. "Coach" means a person employed by a public institution of
19 higher education who is involved in the teaching or training of
20 students participating in an institution-sponsored athletic
21 activity;

22 3. "Covered entity" includes a:

23 a. public institution of higher education which means any
24 institution within The Oklahoma State System of Higher

Education or technology center school overseen by the
State Board of Career and Technology Education,

b. public building which means a building owned or
operated by a governmental subdivision of the state,
and

c. domestic violence shelter which means a state-operated
or state-funded facility that provides services,
including food, housing, counseling, and assistance,
to victims of domestic violence or abuse and their
minor dependent children in this state;

4. "Institution-sponsored athletic activity" means a sporting
event that is supported and affiliated with a public institution of
higher education such as practices, games, matches, and tournaments;

5. "Multi-occupancy" means a space that is designed for use by
multiple persons simultaneously;

6. "Restroom" means a room that includes one or more toilets or
urinals; and

7. "Sleeping quarters" means a room containing a bed and in
which more than one individual is housed overnight.

B. 1. A covered entity shall designate each multi-occupancy
restroom, changing room, and sleeping quarters for the exclusive use
of:

a. females, or

b. males.

1 2. Every restroom or changing room within a covered entity that
2 is designated for females or males shall only be used by members of
3 that sex. No individual shall enter a restroom or changing room
4 that is designated for females or males unless he or she is a member
5 of the designated sex.

6 3. The covered entity shall take reasonable steps to provide
7 individuals with privacy in restrooms, changing rooms, and sleeping
8 quarters from members of the opposite sex.

9 4. This section shall not apply to an individual who enters a
10 restroom or changing room designated for the opposite sex in any of
11 the following circumstances, provided that the restroom or changing
12 room is not in use:

- 13 a. for custodial, maintenance, or inspection purposes,
- 14 b. to render medical assistance,
- 15 c. to render assistance by law enforcement,
- 16 d. to provide services or render aid during a natural
17 disaster, a declared emergency, or when necessary to
18 prevent a serious threat to good order or safety, or
- 19 e. if a suitable meeting room or area is not available, a
20 coach may enter a locker room before, during, or after
21 an institution-sponsored athletic activity, provided:
 - 22 (1) all students present are fully clothed,
 - 23 (2) the coach shall be accompanied by at least one
24 additional adult at all times, and

1 (3) if the coach is the opposite sex of the students
2 present, the coach shall be accompanied by at
3 least one adult of the same sex as the students
4 present.

5 5. During any activity or event authorized by a public
6 institution of higher education where students share sleeping
7 quarters, no student shall be required to share sleeping quarters
8 with a member of the opposite sex, unless such person is a member of
9 the same family, such as a parent, guardian, sibling, or
10 grandparent.

11 6. In any other facility or setting in a public institution of
12 higher education where a person may be in a state of undress in the
13 presence of others, institution personnel shall provide separate,
14 private areas designated for use by persons based on their sex.
15 Except as provided in subsection (4), no person shall enter said
16 private areas unless he or she is a member of the designated sex.

17 7. A public institution of higher education that offers housing
18 for student residents shall provide students the option to be housed
19 only with persons of the same sex.

20 8. Nothing in this section shall be construed to prohibit a
21 covered entity from:

22 a. adopting policies necessary to accommodate persons
23 protected under the Americans with Disabilities Act,
24

1 young children in need of assistance, or elderly
2 persons requiring aid,

3 b. establishing single-occupancy restrooms, changing
4 rooms, or sleeping quarters, or family restrooms,
5 changing rooms, or sleeping quarters, or

6 c. redesignating a multi-occupancy restroom, changing
7 room, or sleeping quarters designated for exclusive
8 use by one sex to a designation for exclusive use by
9 the opposite sex.

10 C. 1. An individual who, while accessing a restroom or
11 changing room designated for use by his or her sex, encounters a
12 person of the opposite sex in that restroom or changing room has a
13 private cause of action for declaratory and injunctive relief
14 against the covered entity if the covered entity:

15 a. provided the person permission to use a restroom or
16 changing room of the opposite sex, or

17 b. failed to take reasonable steps to prohibit the person
18 of the opposite sex from using the restroom or
19 changing room of the opposite sex.

20 2. An individual who is required by the covered entity to share
21 sleeping quarters with a person of the opposite sex has a private
22 cause of action for declaratory and injunctive relief against the
23 covered entity.

3. All civil actions brought pursuant to this section shall be initiated within two (2) years after the violation occurred. An individual aggrieved under this section who prevails in court may recover reasonable attorney fees and costs from the offending covered entity.

SECTION 3. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate